

Tentative Rulings and Resolution Review Hearings
February 3, 2025
Department 64 (formerly Department 3)

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court’s website (www.shasta.courts.ca.gov) and are available by clicking on the “Tentative Rulings” link under the “Online Services” tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Per Local Rule 5.13, telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. Law and Motion

HULBERT VS. CROSS

Case Number: CVPO18-0190446

Tentative Ruling on Motion for Summary Judgment: Defendant, Richard Cross, M.D. moves for summary judgment pursuant to CCP § 437c against the single medical negligence cause of action alleged by Plaintiff, Darren Hulbert. This Motion for Summary Judgment was originally granted by this Court, on September 9, 2019. Plaintiff appealed. The Third District Court of Appeal reversed and remanded with instructions. On November 22, 2021, the Court received the remittitur of the case.

On April 22, 2022, this Court issued a Ruling on Motion for Appointment of Medical Expert, consistent with the Appellate Court’s decision. On September 18, 2024, this Court issued an Order to Show Cause (“OSC”) to Place Defendant’s Motion for Summary Judgment Back on Calendar. Both Plaintiff and Defendant filed and properly noticed responses to the OSC, which the Court duly considered. Given the totality of the circumstances, the Court made the discretionary determination that Plaintiff’s access to the civil courts is not impeded. *Hulbert v. Cross*, 65 Cal. App. 5th 405, 414 (2021). The Court has provided several of the remedies the *Hulbert* Court explained were available to ensure indigent prisoner litigants are afforded meaningful access to the courts, these efforts have now included but are not limited to waiver of all court fees, numerous hearings with the parties to discuss how best to provide the Plaintiff with access to the Court and access to attorneys and experts who might assist him with his case, numerous continuances to allow Plaintiff to procure counsel and independent expert advice, provision of information to the Plaintiff concerning counsel and potential medical experts (including an offer to advance expenses associated with medical expert retention), ordering the Plaintiff’s correctional facility to provide Plaintiff with time and access to facilities in order to appear at hearings telephonically and in an effort to afford Plaintiff with the best possible opportunity to seek retention of counsel or medical experts, and even temporary appointment of the County Counsel’s Office to assist the Plaintiff. The Court considers these efforts to be the innovative and imaginative procedures contemplated by the Appellate Court as those sorts of efforts most likely to ensure the Plaintiff’s access to justice notwithstanding his incarceration. The Court even considered staying this action pending the

Plaintiff's release from custody, but is informed he is serving an indeterminate term.

This case was originally filed July 23, 2018. The Remittitur was issued by the Appellate Court on November 11, 2021, and this Court has been undertaking the above summarized efforts ever since. Specifically, the Court has undertaken 14 substantive hearings since the remittitur in an effort to assist the Defendant in obtaining legal representation and that he could retain an expert to assist him with his response to the Motion for Summary Judgement, all in an effort to comport the Appellate opinion. Also, the OSC placing the MSJ back on calendar was heard on November 12, 2024. By hearing the MSJ on today's date, the Court "re-started" the clock insofar as the notice period for these motions as set forth in the CCP. In doing so, the Court the Court notes 83 days between OSC hearing and MSJ hearing on today's date, Feb. 3.

This Court finds it has undertaken the extensive efforts contemplated by the Appellate Court to assure Plaintiff's access to justice. Indeed, many of these efforts are not available to non-incarcerated self-represented litigants. The Court also finds it has exhausted reasonable efforts to provide the Plaintiff with ample opportunity to procure counsel and/or medical experts. Mindful of the rights of all parties to timely resolution of claims and the Court's duty to timely resolve litigation consistent with codified case disposition standards, the Court finds it is appropriate to now resume proceedings on the Plaintiff's Motion for Summary Judgement. In its November 12, 2024 Order, the Court specified that it would consider the original papers, and also would consider any supplemental briefing. Plaintiff's brief was due by close of business on January 24, 2025. Defendant's brief was due by close of business on January 29, 2025.

On January 24, 2025, the Defendant filed a Request to Change the Hearing Date on this motion, due to a lockdown in the Prison where he is currently housed. In the interest of maintaining the Defendant's access to justice, especially as directed by the Appellate Court, this Court will grant this request and hereby re-sets the hearing of this matter to **March 17, 2025 at 8:30 a.m. in Department 64. Plaintiff's further briefing, if any, must be filed and served no later than March 7, 2025; Defendant's further briefing, if any, must be filed and served no later than March 12, 2025. No appearance is required on today's calendar.**

LAKEVIEW LOAN SERVICING, LLC VS. FIRSTPLUS FINANCIAL, INC., ET AL.

Case Number: 24CV-0204251

Ruling on Ex Parte Application for Order Authorizing Service on Secretary of State: In this action, filed February 8, 2024, Plaintiff has filed the instant ex parte application to serve Defendant Firstplus Financial, Inc. by means of substitute service on the California Secretary of State. Plaintiff alleges Defendant Cody Cournoyer purchased certain real property from Melanie Shockley on February 5, 2021. To effectuate this purchase, Defendant obtained a loan for \$245,373.00 which was secured by a first deed of trust on the real property. The note and deed of trust were eventually acquired by Plaintiff. After Defendant, Cournoyer, defaulted in the payment of this loan, Plaintiff began a non-judicial foreclosure. In the course of this foreclosure process, Plaintiff discovered a previously recorded lien (deed of trust) on the real property in the amount of \$18,258.94. Plaintiff contends it did not previously know of this lien and that it is informed and believes that this lien was previously satisfied and that the deed of trust evidencing this lien should have been extinguished by the filing of a reconveyance. The various causes of action in Plaintiff's complaint are intended to extinguish this prior lien.

One of the named parties in the Plaintiffs complaint is Firstplus Financial, Inc., the named beneficiary in the previously recorded deed of trust. Plaintiff had previously served this entity by substitute service, on CT Corporation System, claiming this was the agent for service of process for Firstplus Financial, Inc. here in California. Plaintiff admits it has now learned that this entity is actually *not* the designated agent of First Plus Financial, Inc. **Therefore, based on the Court's own motion, and with the acquiescence of the Plaintiff, the Default of Firstplus Financial, Inc., filed May 9, 2024, is hereby vacated.** Based upon Corporations Code § 17701.16(c), and the Plaintiff's filed declarations detailing efforts to serve Firstplus Financial, Inc., the Court finds good cause to GRANT Plaintiff's ex parte application to allow substitute service on the Secretary of State as to this named defendant. Plaintiff has filed a proposed order which will be executed.

Based on the foregoing, the Court hereby continues today's Review Hearing to **Monday, May 5, 2025 at 9:00 a.m. in Department 64** for status of service and/or defaults on all parties. No appearance is necessary on today's calendar.

IN RE NOEL

Case Number: 24PB-0032752

Tentative Ruling on Petition to Approve Minor Compromise: This matter is on calendar for hearing on a Petition for Approval of Compromise of Claim. Petitioner is Gabriell Marie Noel, the mother of minor Nilsa Louise Noel. Probate Code § 3500 permits a parent to settle a claim for a minor so long as the claim is not against the parent and the petitioner is (1) Either parent if the parents of the minor are not living separate and apart or (2) The parent having the care, custody, or control of the minor if the parents of the minor are living separate and apart. It appears that the mother would qualify as the petitioner under at least option 2, however, the Court will inquire at the hearing.

California Rule of Court, Rule 7.950 states that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition contains the necessary information. The Court notes this is not an expedited petition brought on Judicial Council Form MC-350EX. See CRC Rule 7.950.5. Therefore, hearing on the petition is required before approval. The person seeking approval of the settlement on behalf of the minor and the minor are required to appear at hearing, unless good cause is presented for their non-appearance. CRC Rule 7.952. The Court will direct Counsel to voir dire Petitioner regarding the following: the authority to act under Prob. Code § 3500(a); the terms of the settlement; and whether the Petitioner understands that once approved, the settlement is final and binding on the minor. Once satisfied, the Court intends to grant the Petition. If granted, the Court will execute the Order and schedule a hearing for review regarding confirmation of filing a verified copy of the annuity contract. **An appearance by the Petitioner and the minor is necessary on today's calendar.**

IN RE: OAKES

Case Number: 24CV-0206142

Tentative Ruling on Petition for Change of Name: Petitioners Aubry Oakes and Rebekah Oakes seek a name change for their minor daughter. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

WYNHOFF VS. CITY OF REDDING

Case Number: 24CV-0204924

Tentative Ruling on Motions to Compel Further Responses: This is an action alleging retaliation under the California Fair Employment and Housing Act, sexual harassment, failure to prevent harassment and retaliation under the California Family Rights Act (“CFRA”). Defendant City of Redding has filed four motions to compel Plaintiff to provide further responses to discovery requests. The City seeks further responses to: 1) Form Interrogatories, Employment and General, Set One, 2) Form Interrogatories, General, Set Two, 3) Requests for Admission, Set One, and 4) Requests for Production, Set One.

Pursuant to CCP §§ 2030.300(b), 2031.310(b), 2033.290(b) motions to compel further responses must be accompanied by a meet and confer declaration. A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion. CCP § 2016.040. The Declarations of Ashley Riser filed in support of the four motions establish the following. In early September, the parties each propounded discovery. The parties thereafter agreed to at least two mutual extensions to respond. In late November, disputes arose regarding each side’s responses. The parties agreed via email to an additional mutual extension to serve supplemental responses by December 13, 2024. Plaintiff’s counsel thereafter revoked their agreement to the final mutual extension, which the City indicated would mean a revocation of the extension they had agreed to. The City indicated this would mean both parties must supplement by December 6, 2024. The City supplemented its responses on December 6, 2024. Plaintiff did not supplement by December 6, 2024. No further evidence of meet and confer efforts has been provided. Based on the meet and confer email correspondence provided to the Court, it does not appear Defendant reached out to Plaintiff regarding their promised supplemental responses between November 27, 2024, and the date these motions were filed on January 2, 2025. (See Declarations of Ashley Riser.)

The Supplemental Declarations of Ashley Riser, filed in support of Defendant’s Replies to each of these four discovery motions, indicate that Plaintiff has now served amended responses to each of the four discovery sets at issue. Plaintiff served the amended responses and a privilege log on January 17, 2025, two weeks after Defendant’s motions to compel were filed. However, Defendant’s Replies do not address whether Plaintiff’s amended responses remain deficient, or if they resolve some or all of the issues raised in these motions.

If Defendant contends that the amended responses remain deficient, then the parties are ordered to meet and confer either in person or by phone regarding the remaining deficiencies no later than February 7, 2025. After additional meet and confer efforts, Defendant must file and serve a supplemental declaration concisely outlining which issues raised in these motions, if any, still require Court intervention no later than February 11, 2025. Hearing on this matter is continued to **Tuesday, February 18, 2025, at 8:30 a.m. in Department 64.** If no disputes remain which require court intervention, Defendant should withdraw these motions at least 5 days prior to the continued hearing date.

9:00 a.m. Review Hearings

ANDRADE, ET AL. VS. ANDERSON-COTTONWOOD IRRIGATION DISTRICT

Case Number: 24CV-0204478

This matter is on calendar for review regarding trial setting. The previous trial date was vacated by the Court's order dated December 2, 2024. The Court designates this matter as a Plan III case and intends to set the matter for trial no later than March 3, 2026. Neither side has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to appear to provide the Court with available trial dates.

IN RE CANTERO, ET AL.

Case Number: 24PB-0032569

This matter is on calendar to confirm deposit of funds into blocked accounts. No Receipts and Acknowledgements have been filed. The settlement funds were made available for the Guardian Ad Litem on November 25, 2024. **An appearance by counsel and the Guardian Ad Litem is necessary on today's calendar. Absent good cause being presented for the delay, the Court intends to issue an Order to Show Cause Re: Monetary Sanctions to Guardian Ad Litem and counsel for failure to deposit the minors' settlement funds into blocked accounts.**

FORRESTER VS. M&M MEYERS ENTERPRISES, INC, ET AL.

Case Number: 23CV-0202671

This matter is on calendar for review regarding status of default judgment. Plaintiff has filed a status statement indicating that Plaintiff has identified Defendant's insurance carrier and counsel, and the parties are discussing setting aside default. Plaintiff requests a continuance. This matter is continued to **Monday, May 5, 2025, at 9:00 a.m. in Department 64** for review regarding status of default judgment. **No appearance is necessary on today's calendar.**

HUMPHREY VS. JAMV, INC

Case Number: 23CV-0202578

This matter is on calendar for review regarding status of mediation. The parties previously informed the Court that mediation was scheduled for January 9, 2025. A status report/stip and order was filed on January 29, 2025, explaining the current status and requesting this matter be continued approximately 30 days. This request has been granted and the Court has continued this matter to **9:00 a.m. on March 10, 2025 in Dept. 64. No appearance is necessary on today's calendar.**

JOHN DEERE CONSTRUCTION & FORESTRY COMPANY VS. J A HEADRICK, INC., ET AL.

Case Number: 23CV-0203830

This matter is on calendar for review regarding status of judgment/dismissal. A Conditional Notice of Settlement was filed on August 7, 2024, which indicates this matter would be dismissed no later than December 1, 2025. **This matter is continued to December 8, 2025 at 9:00 a.m. in Dept. 64.**

LAKEVIEW LOAN SERVICING, LLC VS. FIRSTPLUS FINANCIAL, INC. ET AL.

Case Number: 24CV-0204251

Consistent with the Court's ruling on this matter on today's 8:30 a.m. law and motion calendar, today's review hearing is continued to **Monday, May 5, 2025 at 9:00 a.m. in Department 64** for status of service and/or defaults on all parties. No appearance is necessary on today's calendar.

NAGEL, ET AL. VS. THOR MOTOR COACH, INC

Case Number: 23CV-0202526

This matter is on calendar for review for a status conference. The Court is in receipt of a "Notice of Removal of Case to Federal Court" filed in the Shasta County Superior Court on August 10, 2023. Pursuant to that notice, this Court's jurisdiction is automatically suspended. 28 USC §1446(d); *Allstate Insurance Co. v. Superior Court* (1982) 132 Cal.App.3d 670. All future hearing dates are vacated. This matter is removed from the Court's control, and no other appearances are required by the parties unless or until this matter is remanded back to state court. Plaintiff is ordered to dismiss this action when the Federal matter is resolved. **No appearance is necessary on today's calendar.**

TD BANK USA, N.A. VS. ANDERSON

Case Number: 23CVG-00537

This matter is on calendar for review regarding status of judgment/dismissal. A Conditional Notice of Settlement was filed on August 2, 2024, which indicates this matter would be dismissed no later than February 15, 2027. **This matter is removed from the Court's control due to a conditional settlement. No appearance is necessary on today's calendar.**

THE PEOPLE OF THE STATE OF CALIFORNIA VS. \$123,260.00 U.S. CURRENCY

Case Number: 24CV-0205994

This matter is on calendar for review regarding status of default. A Petition for Forfeiture in Rem was filed September 12, 2024. The Court has no record of a Claim Opposing Forfeiture being filed in this case. **An appearance is necessary on today's calendar to provide the Court with a status of this matter.**